

CITY COUNCIL MEETING MINUTES

June 16, 2025

Cadillac City Hall - 200 N. Lake St. - Cadillac, Michigan 49601

CALL TO ORDER

The meeting was called to order by Mayor Schippers at approximately 6:00 pm.

PLEDGE OF ALLEGIANCE

ROLL CALL

Council Present: Elenbaas, Hopkins, French, Mayor Schippers

Council Absent: Engels

Staff Present: Peccia, Roberts, Ottjepka, Dietlin, Adams, Homier, Wasson

APPROVAL OF AGENDA

2025-144 Approve agenda as amended.

Motion was made by Elenbaas and supported by Hopkins to approve the agenda as amended to add a FOIA Appeal from Ms. Brianna Hall after the Consent Agenda.

Motion unanimously approved.

PUBLIC COMMENTS

Bill Barnett expressed concerns about PFAS test results in the vicinity of 13th Street and Plett Road and about polluting the Clam River.

Mark Lagerwey expressed support for dedicating the trail around Lake Cadillac as the Lake Cadillac Circle Tour. He noted the Rotary Club is working on integrating the White Pine Trail with that Circle Tour and raising funds to have an arch set up near Harbor View.

Daniel Carlson noted there are three houses on Forest Lane that abut City property and there have always been docks in that location.

Pam Marine stated they put in a non-exclusive dock at the end of Forest Lane and discussed the proposed amendment to the ordinance. She requested that docks be allowed.

Brad Marine discussed laws governing retention of public records. He also discussed packets for new board members and providing test results on private wells.

Art Stevens commented on the process being used to appoint a new member to the Local Development Finance Authority.

John Serafano discussed some of the recent online rhetoric.

PFAS UPDATE

Jeff Dietlin, Director of Utilities, noted as of the previous Council meeting, they had completed testing of 48 wells within the City. He stated they placed door hangers on homes encouraging people to have their wells tested. He noted they tested 7 homes last week and have another 13 tests scheduled in the next 2 weeks. He stated on May 19th they took samples of both water plants for the Unregulated Contaminant Monitoring Rule (UCMR) testing. He noted he received the results. He stated the water was tested for 29 PFAS chemicals and lithium. He noted we were below detect on lithium and below their detection limits on the PFAS chemicals. He stated their detection limits for PFAS contaminants are between 2 ppt and 8 ppt depending on the contaminant.

Dietlin stated we are not aware of the test results from 13th Street and Plett Road area that were mentioned by Bill Barnett. He noted from 2018 to current the Wastewater Plant has not been above any regulatory limits for PFAS. He stated in the testing conducted for the LDFA we have not been above regulatory limits for PFAS.

Dietlin stated the City will have a booth at the PFAS Resource Fair to provide information to the public about water, wastewater, and testing of private wells.

CONSENT AGENDA

2025-145 Approve consent agenda as presented.

Motion was made by Elenbaas and supported by Hopkins to approve the consent agenda as presented.

Motion unanimously approved.

FOIA APPEAL

A. FOIA Appeal received from Ms. Brianna Hall

Ms. Brianna Hall, the appellant, was not in attendance.

City Attorney Homier stated the appellant had submitted a FOIA request for documents related to public street trees located directly in front of 512 and 516 N. Simons Street. He stated the City denied the request because we had no public records other than the complaints that the appellant had submitted. He noted we excluded those thinking that she probably didn't want to pay fees on FOIA documents for her own filings and complaints. He stated she then submitted a FOIA appeal. He noted there are still no such records other than the complaints that she filed. He stated to the extent that she has appealed that portion of the denial we've recommended and drafted a response saying that she can have her own complaints but there are no other records responsive to the request submitted.

2025-146 Grant in part, deny in part FOIA Appeal.

Motion was made by Hopkins and supported by Elenbaas to grant in part and deny in part the FOIA Appeal received from Ms. Brianna Hall.

Motion unanimously approved.

COMMUNICATIONS

A. Block Party

2025-147 Approve street closure for Block Party.

Motion was made by Elenbaas and supported by Hopkins to approve the closure of Seneca Place from North Blvd to Mohawk Dr. from 3:00 pm to 10:00 pm on July 12, 2025 for a Block Party.

Motion unanimously approved.

B. Cadillac Area Visitors Bureau Request for KISS Banners

2025-148 Approve KISS-themed banners.

Motion was made by Elenbaas and supported by French to approve the request from the Cadillac Area Visitors Bureau to allow KISS-themed banners to be displayed on the existing poles downtown from June 17, 2025 through October 17, 2025.

Motion unanimously approved.

APPOINTMENTS

A. Recommendation regarding reappointment to the Elected Officials Compensation Commission.

2025-149 Approve reappointment to the Elected Officials Compensation Commission.

Motion was made by Hopkins and supported by Elenbaas to approve the reappointment of Dan Alto to the Elected Officials Compensation Commission for a 5-year term to expire on June 16, 2030.

Motion unanimously approved.

B. Recommendation regarding reappointment to the Cadillac-Wexford Airport Authority.

2025-150 Approve reappointment to the Cadillac-Wexford Airport Authority.

Motion was made by Elenbaas and supported by Hopkins to approve the reappointment of Jennifer Smeltzer to the Cadillac-Wexford Airport Authority for a 2-year term to expire on June 16, 2027.

Motion unanimously approved.

C. Recommendation regarding appointment to the Local Development Finance Authority.

Peccia noted we did go through this conversation last fall. He stated the City Charter is very clear that the City Manager serves as the Chief Administrative Officer for the City of Cadillac. He noted the Mayor for all things statutorily and ceremonially serves as the Chief Executive Officer (CEO). He stated the statute regarding the appointment does reference the CEO which is why the communication provided in the packet is identical to the one that was drafted this past fall. He noted it references consultation between the City Manager and the Mayor and then a recommendation having to be made by the Mayor accordingly.

City Attorney Homier noted it is the Mayor's appointment to make, and the function of the City Council is to either confirm that appointment or not. He stated the Mayor is free to consult with whomever she wants on the appointment.

2025-151 Approve appointment to the Local Development Finance Authority.

Motion was made by Mayor Schippers and supported by Elenbaas to approve the appointment for David Johnson to the Local Development Finance Authority for a 4-year term to expire on June 16, 2029.

Motion unanimously approved.

CITY MANAGER'S REPORT

A. Lake Cadillac Circle Tour

Peccia noted this item came from our Walkability Action Institute team which includes Council Member Elenbaas. He stated the team was formed to discuss how to improve walkability in our area. He noted one of the recommendations was to look at branding and developing a circle tour around Lake Cadillac which is approximately 7 miles. He stated the City was successful in getting a decent sized grant that can help offset some of the signage costs. He noted before they went any further, we wanted to make sure City Council approved branding it as the Lake Cadillac Circle Tour.

Elenbaas asked if it was decided whether it would be one way or both ways.

Mark Lagerwey noted there were discussions about making it a one way (clockwise) to make it safer but there are many people who utilize the pathway around the lake going different directions so he believes we can't designate it as a single direction. He stated it does need to be looked at from a safety standpoint because there are a number of areas going around the lake where there are dangers, so we need signage and regular painting.

2025-152 Dedicate the Lake Cadillac Circle Tour.

Motion was made by Elenbaas and supported by Hopkins to dedicate the 7-mile pathway around Lake Cadillac as the Lake Cadillac Circle Tour.

Motion unanimously approved.

B. Haynes Street Closure

Peccia noted commercial property located at 333 Haynes Street is scheduled to be demolished in July but we don't have an exact date at this time. He stated it is anticipated that it will occur between July 7-18. He noted the demolition is going to require a lane shift, sidewalk closure and possibly a street closure.

2025-153 Approve closures for building demolition.

Motion was made by Hopkins and supported by Elenbaas to approve the lane shift, sidewalk closure and potential street closure for the demolition of the 333 Haynes Street building.

Motion unanimously approved.

C. Recommendation regarding Filter Pipe Replacement.

Peccia stated this item is regarding an emergency repair at the Wastewater Treatment Plant. He noted a recent inspection revealed that a tertiary filter was starting to leak at a pipe fitting that penetrates the tank. He stated upon investigating it was noted that all three filters were failing at these pipe penetrations. He noted there is one company that is qualified for this repair, Monarch Welding & Engineering, and they submitted a quote in the amount of \$11,137.

2025-154 Waive competitive bidding regarding filter pipe replacement.

Motion was made by Elenbaas and supported by Hopkins to waive competitive bidding regarding filter pipe replacement.

Motion unanimously approved.

2025-155 Award repair of piping.

Motion was made by Elenbaas and supported by Hopkins to award Monarch Welding & Engineering, Inc. the sum of \$11,137 to repair the piping in three Aqua Disc tertiary filters.

Motion unanimously approved.

D. Recommendation regarding Fire Marshal Truck Capital Purchase.

Peccia noted we contacted four MiDEAL vendors and one local vendor seeking bids to replace the current Fire Marshal truck. He stated the recommendation is to award the purchase of a 2024 GMC truck to Todd Wenzel Buick GMC of Westland in the amount of \$44,536.

2025 156 Award purchase of Fire Marshal truck.

Motion was made by Elenbaas and supported by French to award the purchase of a 2024 GMC truck in accordance with the MiDEAL bid to Todd Wenzel Buick GMC of Westland in the amount of \$44,536.

Motion unanimously approved.

E. Out-of-State Travel Request

Peccia noted this item is regarding an out-of-state travel request for our Director of Public Safety who oversees both police and fire operations. He stated it is an international association where he will have the opportunity to meet and network with people in his position from all over the world. He noted the convention will be taking place in October in Colorado and is estimated to cost approximately \$2,500.

Mayor Schippers noted there are so many changes and so much volatility in the world right now so she believes it is important that he keep abreast of the most pertinent and latest policies.

2025-157 Approve out-of-state travel request.

Motion was made by Hopkins and supported by Elenbaas to approve the out-of-state travel request for the Director of Public Safety as presented.

Motion unanimously approved.

INTRODUCTION OF ORDINANCES

- A. Adopt resolution to introduce Ordinance to Amend Section 26-104 and Section 26-110 of the Code of Ordinances and set a public hearing for July 21, 2025.

Peccia noted we are requesting Council to set a public hearing for July 21, 2025 regarding an ordinance that will amend Section 26-104 and 26-110 of our Code. He stated he believes there is some confusion out there but the City is not looking at restricting or removing any private docks from private property.

Jerry Adams, Community Development Staff Member, noted we are talking about seasonal docks at public road ends and the current City ordinance references 11 locations at which these road ends are positioned. He stated road end dock locations exist primarily only on paper; the road doesn't actually go to the lake. He noted they are essentially a small segment of subdivided or platted roadway that was created during the platting process. He stated they are owned by the City and don't include facilities for parking vehicles and trailers.

Adams stated the City historically maintained an ordinance that did allow for the seasonal docking of boats at these road ends. He noted in 2012, the State of Michigan passed Public Act 56 which effectively said docks at public road ends are illegal unless the municipality passes an ordinance that does provide for them. He stated we have had a couple of individuals approach the City with questions about how what we have relates to Act 56.

Adams noted City Manager Peccia requested we do some research and decide what we need to do. He stated we looked at a number of sources including other municipalities and information provided by the Michigan Lakes & Streams Association. He noted, generally speaking, the information we found did not paint a very positive picture towards the maintenance of an ordinance such as the one we have now. He stated in looking at some of the decisions of the Michigan Appellate Courts it was implied that a dock at a public road end, even if it is installed by a private party, essentially becomes a public facility. He noted it must be installed, maintained, and effectively owned by the municipality and not by private interests. He stated, in all cases, it has to be open for general public use.

Adams stated along with concerns about liability, according to Public Act 56 you cannot dock a boat overnight which has resulted in enforcement issues for a lot of communities. He noted we also found that our docked road ends are not well delineated so that has the potential to result in issues between adjoining property owners. He stated we found possible concerns with State regulations in making sure the shoreline isn't negatively impacted. He noted, lastly, there are concerns about staff time and costs needed to enforce the ordinance.

Adams stated the City does provide two very usable, very attractive facilities for launching boats with one on Chestnut Street near Lake Street and the other at Kenwood Park. He noted we provide about 70 spaces at those locations for parking vehicles and boat trailers. He stated they are available free of charge to both residents and guests. He noted we provide almost 400 feet of beach shoreline at Kenwood Park along with restrooms, picnic facilities, et cetera. He stated although there is a little bit of cost involved there is a nice beach in Mitchell State Park. He noted we do provide facilities for both boating and swimming.

Peccia noted there were some comments about the uniqueness of the Forest Lane location which he believes to be true and accurate. He stated this location is different than the other road ending locations and also includes a very small public park space.

Adams stated there's always the potential for us to look at the development of a facility at that location.

Peccia stated that would be a public policy discussion.

French noted according to the ordinance the person who puts the dock in, with the understanding that it is a public use dock, has to come up with liability insurance to cover the liability. She stated it doesn't specify how much liability coverage is required and asked if we knew that dollar amount. She asked if the fact that Lake Cadillac is contained within the City limits does that make things different in terms of the Inland Streams Act and the coverage of any State involvement in permitting. She asked if we say docks at road ends are no longer allowed what kind of uses are allowed in those areas. She noted she believes the intention of the ordinance was to allow neighborhoods, not the public, to have access at the road ends.

2025-158 Set public hearing for Ordinance 2025-10.

Motion was made by Elenbaas and supported by Hopkins to adopt the resolution to introduce Ordinance to Amend Section 26-104 and Section 26-110 of the Code of Ordinances and set a public hearing for July 21, 2025.

Motion unanimously approved.

ADOPTION OF ORDINANCES AND RESOLUTIONS

- A. Adopt Resolution Regarding Former Cooley School Brownfield Plan and set a public hearing for July 21, 2025.

Peccia stated the City is being asked to consider a Brownfield Program for the former Cooley School property identical to what we were asked to consider for the North Lake Street Flats project as well as the Cadillac Lofts Phase 2 project.

2025-159 Set public hearing for Former Cooley School Brownfield Plan.

Motion was made by Hopkins and supported by French to adopt the Resolution Regarding Former Cooley School Brownfield Plan and set a public hearing for July 21, 2025.

Motion unanimously approved.

B. Adopt Resolution Amending General Appropriations Act for Fiscal Year 2025.

Peccia noted because this is the last regularly scheduled Council meeting before the start of the new fiscal year we have some year-end housekeeping regarding a budget amendment.

Owen Roberts, Director of Finance, noted a revised budget amendment has been provided to Council. He stated it was revised to appropriate additional dollars for legal fees. He reviewed the proposed budget amendment. (see attachment)

2025-160 Adopt Resolution Amending General Appropriations Act for Fiscal Year 2025.

Motion was made by Hopkins and supported by Elenbaas to adopt the Resolution Amending General Appropriations Act for Fiscal Year 2025 as presented.

Motion unanimously approved.

C. Adopt Resolution regarding a Development and Tax Increment Financing Plan for the Cadillac West Corridor Improvement Area and set a public hearing for July 21, 2025.

Peccia noted Council is being asked to set a public hearing for July 21, 2025 regarding the establishment of a Development and Tax Increment Financing Plan for the Cadillac West Corridor Improvement Area.

2025-161 Set public hearing for TIF Plan.

Motion was made by Elenbaas and supported by French to adopt the Resolution regarding a Development and Tax Increment Financing Plan for the Cadillac West Corridor Improvement Area and set a public hearing for July 21, 2025.

Motion unanimously approved.

PUBLIC COMMENTS

Brad Marine noted there are already several docks on public property on North Boulevard. He stated Council should be transparent regarding the legal opinions.

Daniel Carlson expressed support for docks at the end of Forest Lane.

John Serafano noted there is a group in the community that is willing to go to any lengths to silence people who do not agree with them.

GOOD OF THE ORDER

French thanked Jerry Adams for his reporting on the dock issue. She asked Owen Roberts to thank the street cleaning crew for cleaning up the curbsides. She noted there was an accident at the end of Marble Street on Father's Day. She stated a car was coming down the hill and hit a pickup truck and then diverted and took out an electric pole. She noted the pickup truck was coming out of the cemetery driveway. She thanked the first responders and Consumers Energy for their quick response. She noted

the speed limit coming down the hill is 45 mph and she asked if the City could contact MDOT to find out if the speed limit could be reduced to 35 mph. She asked if we could install signage in the cemetery to allow that to be only an entrance not an exit due to the low visibility.

Elenbaas stated that signage will not prevent people from using that as an exit because they have been doing it for many years. He stated it may be better to install a sign that reads “exit carefully”.

Peccia noted the City engineer is in attendance and heard what was suggested regarding the speed limit.

Mayor Schippers discussed the recent Celebrate Women fundraiser for Cadillac Oasis Family Resource Center. She noted Cadillac Oasis runs a women’s crisis center that deals with domestic violence, sexual assault victims, and helps people transition back into life after being victimized. She stated there was a speaker who works with the Attorney General’s office and is working with Oasis and our prosecutor’s office to bring back people who have fled. She noted it was a wonderful event honoring women who make a difference in the community.

Peccia stated the public agenda does list the statute (MCL) and then explains it. He noted MCL 15.268(1)(h) is to consider confidential written legal opinions which, as the statute goes on to say, are exempt from discussion or disclosure by state or federal statute. He noted if you are providing the topic in that motion then you are waiving that right to confidentiality. He stated the topic itself is confidential. He stated MCL 15.268(1)(a) to consider a periodic personnel evaluation of the city manager at his request is the statute that allows for that to be done in closed session.

CLOSED SESSION

Adjourn to closed session pursuant to MCL 15.268(1)(h) to consider confidential written legal opinions, which are exempt from discussion or disclosure by state or federal statute and pursuant to MCL 15.268(1)(a) to consider a periodic personnel evaluation of the city manager at his request.

2025-162 Adjourn to closed session.

Motion was made by Elenbaas and supported by French to Adjourn to closed session pursuant to MCL 15.268(1)(h) to consider confidential written legal opinions, which are exempt from discussion or disclosure by state or federal statute and pursuant to MCL 15.268(1)(a) to consider a periodic personnel evaluation of the city manager at his request; invite Jerry Adams, Community Development Consultant, and Jeff Dietlin, Director of Utilities, accordingly.

Motion unanimously approved.

2025-163 Return to open session.

Motion was made by Hopkins and supported by French to return to open session.

Motion unanimously approved.

ADJOURNMENT

Respectfully submitted,

Tiyi Schippers, Mayor

Sandra Wasson, City Clerk

City of Cadillac

EXHIBIT A

Financial Services Department
FY2025 Budget Amendment #4
June 16, 2025

Current Budget	Amended Budget	Increase (Decrease)
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GENERAL FUND

Department: Revenue	\$9,319,300	\$9,445,700	\$126,400
Amended Line Items Detail			
Local Community Stabilization Authority	675,000	801,400	126,400

***Purpose:** To recognize additional revenue from the following the Local Community Stabilization Authority for personal property tax loss reimbursement.*

Department: City Attorney	\$250,000	\$260,000	\$10,000
Amended Line Items Detail			
Legal Fees	115,000	125,000	10,000

***Purpose:** Appropriate additional funds for additional legal fees based on current activity.*

Department: Fire Department	\$1,819,200	\$1,844,200	\$25,000
Amended Line Items Detail			
Overtime	125,000	150,000	25,000

***Purpose:** Appropriate additional funds for overtime due to vacancies and additional back-filling needs of the department.*

Department: Sidewalks and Alleys	\$52,000	\$62,000	\$10,000
Amended Line Items Detail			
Equipment Rental	32,000	42,000	10,000

***Purpose:** Appropriate additional funds for equipment rental for increased winter DPW activities based on high snowfall.*

Department: Leaves	\$53,500	\$60,500	\$7,000
Amended Line Items Detail			
Equipment Rental	35,000	42,000	7,000

***Purpose:** Appropriate additional funds for equipment rental for increased DPW activities related to leaf cleanup.*

City of Cadillac

EXHIBIT A

Financial Services Department
FY2025 Budget Amendment #4
June 16, 2025

	Current Budget	Amended Budget	Increase (Decrease)
Department: Code Enforcement	\$67,000	\$72,000	\$5,000
Amended Line Items Detail			
Salaries and Wages	38,000	41,000	3,000
Benefits	27,500	29,500	2,000

Purpose: Appropriate funds for additional code enforcement and PD office backup activities.

General Fund Summary	Prior Approved	Amended	Change
Revenues	\$9,319,300	\$9,445,700	\$126,400
Expenditures	9,665,800	9,722,800	57,000
Revenues Over (Under) Expenditures	(\$346,500)	(\$277,100)	

Major Street Fund

Expenditures	\$1,897,100	\$2,010,100	\$113,000
Amended Line Items Detail			
Forestry			
Contractual Services	8,000	25,000	17,000

Purpose: Appropriate funds for contractual tree removal; several significant storm events and additional need for contractual services for trees in overhead lines.

Winter Maintenance			
Operating Supplies	37,000	57,000	20,000
Equipment Rental	80,000	110,000	30,000

Purpose: Appropriate additional funds for salt and equipment rental for increased winter DPW activities based on high snowfall.

State Winter Maintenance			
Operating Supplies	50,000	65,000	15,000
Equipment Rental	75,000	106,000	31,000

Purpose: Appropriate additional funds for salt and equipment rental for increased winter DPW activities on state trunklines based on high snowfall. These costs are reimbursed by the State.

City of Cadillac

EXHIBIT A

Financial Services Department
FY2025 Budget Amendment #4
June 16, 2025

Current Budget	Amended Budget	Increase (Decrease)
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Local Street Fund

Expenditures	\$1,342,400	\$1,377,400	\$35,000
Amended Line Items Detail			
Forestry			
Contractual Services	10,000	25,000	15,000

Purpose: *Appropriate funds for contractual tree removal; several significant storm events and additional need for contractual services for trees in overhead lines.*

Winter Maintenance			
Operating Supplies	30,000	35,000	5,000
Equipment Rental	70,000	85,000	15,000

Purpose: *Appropriate additional funds for salt and equipment rental for increased winter DPW activities based on high snowfall.*

Brownfield Redevelopment Authority Fund

Expenditures	\$125,500	\$150,500	\$25,000
Amended Line Items Detail			
Contractual Services	125,500	150,500	25,000

Purpose: *Appropriate funds for in accordance with BRA approval to cover soil removal and soil vapor testing at The Market based on EGLE requirement.*

City of Cadillac

Financial Services Department
FY2025 Budget Amendment #4
June 16, 2025

EXHIBIT A

Current Budget	Amended Budget	Increase (Decrease)
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Building Inspection Fund

Revenue	\$70,000	\$90,000	\$20,000
Amended Line Items Detail			
Permit Fees	70,000	90,000	20,000

Purpose: Increased revenue based on actual building inspection activity.

Expenditures	\$70,000	\$90,000	\$20,000
Amended Line Items Detail			
Contractual Services	67,000	87,000	20,000

Purpose: Appropriate funds for increase in building inspection activity. Fees are passed through to contract building inspection company.

Stores and Garage Fund

Revenue	\$820,000	\$865,000	\$45,000
Amended Line Items Detail			
Equipment Rental	780,000	825,000	45,000

Purpose: Increased revenue based on actual equipment rental activity.

Expenditures	\$820,000	\$845,000	\$25,000
Amended Line Items Detail			
Public Works			
Equipment Maintenance	85,000	110,000	25,000

Purpose: Appropriate funds for increase in equipment repair costs.